

SOCIETY

Caste Aspersions

By Arvind Chhabra and Sumaiya Khan

It's the last sigh of feudal patriarchy before it goes into terminal decline. Or the resurgence of a dreaded custom. Call it what you will but the flexing of muscle by khap panchayats has forced urban India to examine the ugliness that lies in its core. As people across the urban-rural divide live more personal lives, the traditional culture recedes and those who want to uphold it, feel threatened. The Jats, who form an estimated fifth of the population in Haryana, have participated in the inevitable shift in the next generation's attitudes, giving their girls access to education (though the state is second in per capita income, it has one of the lowest sex ratios, 821 girls for every 1,000 boys in the 0-6 age group), so they can fulfil middle-class aspirations through better marriages. Kinship rules vary from caste to region to religion. If among the Nairs of Kerala, marriage within the mother's family is to be avoided, in Tamil Nadu, marriage to the mother's brother's daughter is considered appropriate.

In north India though, not only could you not marry a person from your father's *gotra* (patrilineal clan that traces lineage to a common ancestor) but also your mother's father's *gotra*, your mother's mother's *gotra* and your father's mother's *gotra*. Says sociologist Patricia Uberoi, "You also could not marry within the same village or neighbouring villages or with people who had migrated to other parts of the country from your village. But with time many people began to disobey these customs as it was not possible to follow them." So in the Hindu Marriage Act, 1955, the same-*gotra* considerations did not apply. In its place was a rule of prohibited degrees of relationship, measured in terms of distance in the blood relation, *sapinda*. This means that you can marry a person if he/she is five generations removed from your father's side and three generations removed from your mother's side. This restricts the scope of the earlier same-*gotra* prohibition.

Now try explaining it to someone in love. Try enforcing it. The only way possible is terror and in a landmark judgement on March 30, when the Additional Sessions Court in Karnal sentenced five persons to death and awarded a life sentence to a khap panchayat leader Ganga Ram, the

state showed that it had the power to establish a deterrent. All five given the death penalty were relatives of Babli Banwala, 19, from a nearby village, Karora. She had married Manoj Banwala, 23, also from the same *gotra*, against the wishes of her family. It was enough to send the vocal khap panchayat into a tizzy of activity. Khap leaders met at Kurukshetra on April 13 and not only condemned the judgement, but also extended full support to the convicts.

Khaps have "functioned since the time of rulers like Ashoka and Harshvardhan", as Congress MP Naveen Jindal wrote in his letter to Mewa Singh, pradhan of 12 khaps based in Jind. Khaps were reorganised as instruments of



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FORBIDDEN DREAMS

At 22, there were two worlds that Nirupama Pathak had to grapple with. One was the world of a young journalist while the other was that of a girl who belonged to a Brahmin family that had zero tolerance towards her Kayastha boyfriend Priya-bhanshu Ranjan. She was found dead, killed under mysterious circumstances at her home, where she thought the two worlds could finally meet.

mobilisation under Mahendra Singh Tikait who ironically used them to demand better agricultural prices. Now, though, with what sociologist Surinder S. Sodhka calls dissociation of caste and occupation, distancing of communities from their birthplace, and cultural autonomy (for instance, Dalits in Punjab have their own Ravidasi gurdwaras or separate *chaupals*), hidebound conventions are crumbling, which explains the bluster. "Let any judgement come, let any Union minister or any constitutional functionary say whatever. We won't abide by any law," declares Om Prakash Dhankar, president of Dhankar Gotra and national general secretary of the Akhil Bhartiya Jat Aarakshan Sangathan which was formed last year to demand OBC reservation for Jats. "There's an intensified campaign launched against us. All those who advocate such marriages are sadists. Let it happen to them and we'll see how they respond."

4,830

gotras have been listed by the Jats. They claim over 100 are yet to be included in the list.